IN THE NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD
DIVISION BENCH
COURT-1

ITEM NO. 204
C.P.(CAA) No.66 of 2022
In
C.A.(CAA) No. 41/NCLT/AHM/2022

Order under section 230-232 of Companies Act, 2013

IN THE MATTER OF :
Parksons Packaging Limited **….Petitioner Company/ Transferee Company**

Order delivered on: 17/07/2023

Coram:
Mr. Shammi Khan, Hon'ble Member (J)
Mr. Kaushalendra Kumar Singh, Hon'ble Member (T)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

The case is fixed for pronouncement of order. The order is pronounced in theopen court, vide separate sheet.

-Sd-
KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

-Sd-
SHAMMI KHAN
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
DIVISION BENCH
COURT-1

CP(CAA) NO. 66 OF 2022 IN
CA(CAA)NO. 41/NCLT/AHM/2022

[Application under section 230-232 of Companies Act, 2013 read with the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016]

In the matter of Scheme of Amalgamation

Between

Manohar Packagings Private Limited

(Transferor Company)

And

Parksons Packaging Limited

(Petitioner Company /Transferee Company)

And

Their respective Shareholders and Creditors

In the matter of:

Parksons Packaging Limited,
A Company incorporated under the
provisions of the Companies Act, 1956 and
having its registered office at
Survey No. 11 & 13, Ringanwada,
Nani Daman, Daman 396210.
(CIN: U21029DD1996PLC003450) …Petitioner Company / Transferee Company

Order Pronounced on: 17/07/2023

Coram: Shammi Khan, Hon'ble, Member (J)
Kaushalendra Kumar Singh, Hon'ble Member (T)

APPEARANCE:

Mr. Ravi Pahwa, Advocate i/b Thakkar & Pahwa, Advocates for the Petitioner Company.

O R D E R

1. The present petition has been filed by Petitioner Company under Sections 230-232 of the Companies Act, 2013 read with Companies (Compromise, Arrangement and Amalgamations) Rules, 2016 seeking sanction of the Scheme of Amalgamation between Manohar Packagings Private Limited (Transferor Company) and Parksons Packaging Limited (Transferee Company) and their respective shareholders and creditors with effect from 1st April, 2022, being the Appointed Date as mentioned in the scheme.

2. An Affidavit has been sworn by Mr. Bhavin Shah on behalf of the Petitioner Company who is the authorized signatory of the Petitioner Company, and the same is annexed with the Petition.

3. The Learned Counsel for the Petitioner Company submitted that the Transferor Company is a wholly owned subsidiary of Petitioner Company/Transferee Company. The registered office of the Transferor Company is situated in the State of Maharashtra and therefore, the Transferor Company filed separate petition before the Hon'ble National Company Law Tribunal, Mumbai Bench being CP (CAA) No. 185/MB-IV/2022 in CA (CAA)/152/MB/2022 seeking approval for the Scheme of Amalgamation of Transferor Company with the Transferee Company and their respective shareholders and creditors. It is further submitted that the Hon'ble National Company Law Tribunal, Mumbai Bench-IV vide order dated 12.04.2023 has allowed the petition in

terms of prayer in the petition. The said order is placed on record by the Petitioner Company.

4. The Petitioner Company had filed an Application before this Tribunal being CA (CAA) No. 41of 2022 seeking dispensation of meetings of Equity Shareholders and Secured Creditors and to seek direction for convening the meeting of Unsecured Creditors.

5. By an order dated 22.08.2022 passed in CA(CAA) No. 41 of 2022, this Tribunal dispensed with the meeting of Equity Shareholders and Secured Creditors and directed the Petitioner Company to convene the meeting of Unsecured Creditor on 29.09.2022, for the purpose of considering and if thought fit, approving, with or without modification(s) the proposed Scheme of Amalgamation, by publishing advertisement of meeting at least one month before the date of meeting in "Business Standard" English Daily and "Sandesh" Gujarati Daily, having circulation in Gujarat and also to send notice of meeting to each Unsecured Creditor of the Petitioner Company at their respective registered or last known addresses either by Registered Post or Speed Post/ Airmail or E-mail or by Courier or by Hand Delivery.

6. This Tribunal appointed Mr. Kamlesh Khator, Independent Chartered Accountant as Chairman and CA Mr. Rahul Atal, Partner of ARCH and Associates as Scrutinizer of the aforesaid meeting and gave further directions to comply with various stipulations contained in order including Filing of the Chairman's Report. Further, to ensure compliance of sub-section (5) of Section 230 and Rule 8 of the Companies (CAA) Rules, 2016, directions were given to the Petitioner Company to send notice of meeting under sub-section(3) of Section 230 read with Rule 6 of the Companies (CAA) Rules, 2016 in Form No. CAA.3 along with a copy of the Scheme of Amalgamation, explanatory statement and the disclosure mentioned under Rule 6 to (i) the Central Government through the Regional Director, North Western

Region, (ii) the Registrar of Companies, Goa (iii) the Income Tax Authority, stating that the representations, if any, to be made by them shall be made within a period of 30 days from the date of receipt of such notice, failing which it shall be presumed that they have no objection to make on the proposed Scheme of Amalgamation.

7. The Petitioner Company thereafter filed Company Application no.19 of 2022 under Rule 154 of NCLT Rules seeking some corrections in the order dated 22.08.2022 at para 18(i) of the order wherein the notice was issued to the Central Government through the Regional Director, **"North Western Region"** instead of Regional Director "**Western Region"**. This Tribunal vide order dated 12.09.2022 disposed of Company Application No. 19 of 2022 by correcting the order dated 22.08.2022.

8. In compliance of the order dated 22.08.2022, the Petitioner Company published the notice of meeting of Unsecured Creditors in prescribed newspapers and also sent individual notice of meeting to all its Unsecured Creditors. The Petitioner Company have also served the notice upon Central Government through the office of Regional Director, Western Region, Mumbai, the Registrar of Companies, Goa and the Income Tax Authority. The Petitioner Company have filed affidavit of service dated 13.09.2022.

9. The meeting of Unsecured Creditors was duly convened on 29.09.2022. The Chairman of the meeting has filed the respective report on 04.10.2022.

10. The Chairperson vide its report dated 29.09.2022 have submitted the result of said meeting in Form CAA 4, wherein 86 Unsecured Creditors entitled together to a total outstanding debt of Rs.82,88,53,314/- (Eighty-Two Crore Eighty-Eight Lakhs Fifty-Three Thousand Three

Hundred and Fourteen Only) representing 100% of total value of Unsecured Creditors of the Petitioner Company present and voting, have unanimously approved the Scheme of Amalgamation.

11. The Petitioner Company have filed the present Company Petition being CP(CAA) No. 66 of 2022 before this Tribunal on 13.10.2022 seeking sanction of the scheme.

12. This Tribunal by order dated 01.11.2022 , admitted the petition and directed for publication of hearing of the Petition in "Business Standard" in English and "Sandesh" in Vernacular language both in Ahmedabad edition not less than ten days before the date fixed for hearing, calling for objections, if any, on or before the date of hearing. This Tribunal also directed to issue a notice of hearing of the petition to Regional Director, Registrar of Companies and Income Tax Authority.

13. Pursuant to order dated 01.11.2022 passed by this tribunal, the Petitioner Company have published the notice of hearing of Company Petition in English newspaper namely, "Business Standard" and in Vernacular newspaper namely, "Sandesh" both in Ahmedabad edition on 14.11.2022. The affidavit of service, on behalf of the Petitioner Company, dated 18.11.2022 has been filed on 22.11.2022 confirming the publication of the notice in the newspapers as directed and also the notice of hearing of the petition been served upon all the concerned statutory authorities.

14. In response to the notice served upon the Regional Director (RD), a Representation was submitted by the RD, Western Region, MCA dated 31.10.2022 filed on 29.11.2022 along with the report from Registrar of Companies (RoC). Their observations are as follows:

    i. As per the records of MCA, the Petitioner Company has active charges, as noted in the table.

ii. As per the order of this Tribunal, the Petitioner Company was to publish about the convening of meeting of unsecured creditors in two newspapers, however, no copy of newspaper publication of the notice of meeting of unsecured creditors are found attached to the Company Application submitted with the office of RD.

iii. To direct the Petitioner Company to comply with the provisions of Sec.232(3)(i) of Companies Act, 2013 in respect of fees payable by Petitioner Company for increase of share capital on account of merger of transfer of companies.;

iv. To direct the Petitioner Company to pass such accounting entries which are necessary in connection with the Scheme to comply with other applicable Accounting Standards including AS-5 or IND AS-8, etc.

v. To direct the Petitioner Company to file an affidavit to the extent that the Scheme enclosed to Company Application and Company Petition are one and same and there is no discrepancy or no change is made.

vi. To direct the Petitioner Company to serve notice under provision of section 230(5) of the Companies Act, 2013 to concerned authorities which are likely to be affected by the Amalgamation or arrangement.

vii. To direct the Petitioner Company to comply with the requirements as clarified vide circular no.F. No. 7/12/2019/CLAIMANT-I dated 21.08.2019 issued by the Ministry of Corporate Affairs.

viii. To direct the Petitioner Company to satisfy this Tribunal about fairness/genuineness of issue of share capital.

ix. To direct the Petitioner Company to file Form BEN-2 for declaring name of significant beneficial owner i.e. Olza Holdings Limited with concerned ROC;

x. To direct the Petitioner Companies to undertake to comply with the directions of Income Tax Department, if any;

xi. To direct the Petitioner Companies to undertake to comply with the directions of the concerned Sectoral Regulatory, if so required.

15. The Petitioner Company has filed affidavit in reply dated 02.12.2022 in response to observations made by Regional Director and RoC as under:-

i. Charge ID 100440759 relating to supplemental deed memorandum to unattested memorandum of hypothecation created on 9.4.2021 amounting to Rs. 188,472,051.94 is reflecting as closed on the MCA portal.

ii. The Petitioner Company submitted copy of newspaper publication of notice of meeting of unsecured creditors in "Business Standard" English Newspaper and "Sandesh" Gujarati daily having circulation in Gujarat as Annexure "B".

iii. The Petitioner Company undertakes to comply with the provisions of Sec.232(3)(i) of Companies Act, 2013 in respect of fees payable by Petitioner Company for increase of share capital on account of merger of companies.

iv. The Petitioner Company undertakes that in addition to compliance of IND AS 103 for accounting treatment, the petitioner company shall pass such accounting entries which are necessary in connection with the Scheme to comply with other applicable Accounting Standards such as IND AS-8, as applicable.

v. The Petitioner Company declares that the Scheme enclosed to Company Application and Company Petition are one and same and there is no discrepancy, and no change is made.

vi. The Petitioner Company confirms that the notices have been served on the concerned authorities which are likely to be affected by the Scheme of Amalgamation. Further, the approval of the Scheme by this Tribunal may not deter such authorities to deal with any of the issue arising after giving effect to the

Scheme and the decision of such authorities is binding on the petitioner company.

vii. The Petitioner Company confirms and undertakes that upon the order sanctioning the Scheme is filed by Petitioner Company and Transferor Company with their jurisdictional RoC, the Scheme shall take effect from the appointed date i.e. 1.4.2022 and the same will be in compliance with the requirements and clarified vide Circular no. F. No. 7/12/2019/CLAIMANT-I dated 21.08.2019 issued by the Ministry of Corporate Affairs.

viii. The Petitioner Company has submitted details about fairness/ genuineness of the issue of share capital in a tabular chart as reproduced in the affidavit.

ix. The Petitioner Company has submitted that OLZA holding Limited is 100% owned by Kedaara Capital I Ltd. Kedaara Capital I Ltd. is a close ended fund registered with Mauritius Financial Services Commission. No individual / entity holds 10% or more shares in Kedaara Capital I Limited. Hence, the provisions of Sec.90 of Companies Act, 2013 r/w. Companies (Significant Beneficial Owners) Amendment Rules, 2019 are not applicable to the Petitioner Company.

x. The Petitioner Company undertakes that no specific directions have been received from the Income Tax Department;

xi. The Petitioner Companies undertakes to comply with the directions of the Sectoral Regulatory, if any.

16. Considering the above reply filed by the Petitioner Company dated 02.12.2022, the observations made by the Regional Director in its representation dated 31.10.2022 stands satisfied.

17. With respect to notice served on Income Tax Department, last chance was given by this Tribunal to the department vide order dated 02.05.2023 to file the report within two weeks, failing which right to

file reply/report would be closed, despite of this no reply/report is filed by the Income Tax Department.

18. The Petitioner Company has filed audited financial statements as on 31.03.2022 and unaudited financial statements as on 30.06.2022, which are annexed with the Company Petition. The Petitioner Company has also placed on record the financial statement of Transferor Company vide Purshis dated 16.06.2023 and Schedule Assets & Liabilities vide Purshis dated 29.06.2023.

19. It is submitted that the Statutory Auditor of the Petitioner Company has certified that the Accounting Treatment of the Scheme is in conformity with the Accounting Standards prescribed under section 133 of the Companies Act, 2013. A copy of the certificate issued by the statutory auditor is produced on record.

20. It is submitted that no winding up proceedings have been filed or are pending against the Petitioner Company under the Companies Act, 2013 or under the corresponding provisions of the Companies Act, 1956.

21. The Petitioner Company has stated in the Petition that no inspection or investigation has been instituted or pending against the petitioner company under the provisions of the Companies Act, 2013.

22. We have heard the Ld. Counsel for the Petitioner Company and also gone through the records.

23. On the basis of the above facts and submissions made by the Ld. Counsel and by considering the entire facts and circumstances of the aforesaid company petition and on perusal of the Scheme and the proceedings, it appears that the requirements of the provisions of section 230 and 232 are satisfied by the Petitioner Company. We are

of the considered view that the proposed Scheme of Amalgamation is bonafide and in the interest of the shareholders and creditors. In the result, Company Petition No. CP(CAA) No. 66 of 2022 is allowed. The scheme envisages amalgamation of Manohar Packagings Private Limited (Transferor Company) and Parksons Packaging Limited (Transferee Company) and their respective shareholders and creditors. It is declared that the said sanctioned scheme shall be binding on the Petitioner Company and their shareholders, creditors and all concerned under the scheme.

24. Notwithstanding the above, if there is any deficiency found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the petitioners.

25. While approving the Scheme as above, we further clarify that this order should not be construed as an order in granting any exemption from payment of stamp duty, taxes including income tax, GST, etc. or any other charges, if any, and payment in accordance with law or in respect of any permission/compliance with any other requirement which may be specifically required under any law. It is further clarified that Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and sanction of the Scheme of Amalgamation given hereunder shall not adversely affect the rights of Income Tax Department on any past, present or future proceedings.

26. This Tribunal orders as under:-

i. The Scheme of Amalgamation as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that same shall be binding on the Petitioner Company and their

Shareholders and Creditors and all concerned under the scheme.

ii. The Transferor Company shall, together with all its properties, rights and powers be transferred without further act or deed to the Transferee Company and accordingly the same shall pursuant to Section 232 of the Act, stand transferred to and vest in the Transferee Company for all the estate and interest of the Transferor Company. The schedule of property of the Transferor Company is annexed with this Order at **"Annexure-B"**.

iii. All licenses, permissions, permits, approvals, certificates, clearances, authorities, leases, tenancy, assignments, rights, claims, liberties, special status, other benefits or privileges and any power of attorney relating to the Transferor Company shall stand transferred to and vested in the Transferee Company, without any further act or deed. The Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Transferee Company.

iv. All the liabilities and duties of the Transferor Company be transferred, without further act or deed, to the Transferee Company and accordingly the same shall pursuant to Sections 230 & 232 of the Companies Act, 2013, be transferred to and become the liabilities and duties of the Transferee Company.

v. All contracts, agreements, insurance policies, bonds and all other instruments of whatsoever nature or description, of the Transferor Company, shall stand transferred to and vested in the Transferee Company and be in full force and effect in favour

of the Transferee Company and may be enforced by or against it as fully and effectually against the Transferee Company.

vi. All taxes paid or payable by the Transferor Company including existing and future incentives, un-availed credits and exemptions, the benefit of carried forward losses and other statutory benefits, which shall be available to and vest in the Transferee Company. The Tax liability of the Transferor Company shall become a liability of the Transferee Company and any proceedings against the Transferor Company shall continue against the Transferee Company.

vii. All proceedings now pending by or against the Transferor Company in respect of the Transferor Company shall be continued by or against the Transferee Company.

viii. Consideration

The entire issued, subscribed, and paid-up equity share capital of Transferor Company is held by Transferee Company and its nominees.

Upon the Scheme becoming effective, no shares of Transferee Company shall be issued or allotted in lieu or exchange of its holding in Transferor Company and, investment in the share capital of the Transferor Company held by Transferee Company as on the Effective Date shall stand automatically cancelled accordingly, without any further application, act, instrument or deed.

The cancellation of the equity share capital held by Transferee Company in Transferor Company, in accordance with Clause 6.1 of the Scheme, shall be effected as a part of this scheme itself and not under a separate procedure, in terms of Section 66 of the Companies Act and the order of the Tribunal sanctioning

this scheme shall be deemed to be an order under section 66 of the Companies Act, or any other applicable provisions, confirming the reduction.

ix. All employees in the service of the Transferor Company shall be deemed to have become the employees of the Transferee Company on a date on which the scheme finally takes effect on the basis that their services shall be deemed to have been continuous and not have been interrupted by reasons of the said transfer and on term and conditions no less favourable than those on which they were/are engaged, as on the Effective Date.

x. The Petitioner Company is directed to lodge a copy of this Order and the approved Scheme duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for adjudication of stamp duty, and pay requisite stamp duty payable, if any, within 60 days from the date of this Order.

xi. The legal and expenditure fees for the office of the Regional Director are quantified at Rs. 10,000/-. The said fees to the Regional Director shall be paid by the Transferee Company.

xii. The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Dept. shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Arrangement under Sections 230-232 of the Income Tax Act, 2013 shall not adversely affect the rights of Income

Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

xiii. Any person aggrieved shall be at liberty to apply to this Tribunal for any directions that may be necessary.

27. The Company Petition CP(CAA) No. 66 of 2022 connected with CA(CAA) No. 41 of 2022 is disposed of.

-Sd- -Sd-

KAUSHALENDRA KUMAR SINGH
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

Arati-LRA

Annexure- E

SCHEME OF AMALGAMATION

BETWEEN

Annexure-A

MANOHAR PACKAGINGS PRIVATE LIMITED

AND

175

PARKSONS PACKAGING LIMITED

AND

THEIR RESPECTIVE SHAREHOLDERS

(Under Sections 230-232 and other applicable provisions of the Companies Act, 2013)

PREAMBLE

This Scheme of Amalgamation ('Scheme') is presented under Sections 230-232 and other applicable provisions of the Companies Act, 2013 for the amalgamation of Manohar Packagings Private Limited (hereinafter referred to as "MPPL" or "the Transferor Company") with Parksons Packaging Limited (hereinafter referred to as "PPL" or "the Transferee Company") and their respective shareholders and various other matters consequential or otherwise integrally connected herewith.

DESCRIPTION OF COMPANIES

1. MPPL was incorporated on the 21st day of February, 1994 as a Private Limited Company, bearing Corporate Identity Number (CIN): U74950MH1994PTC260138, currently having its registered office at 701 & 702, 7th Floor, One International Centre, Tower 1, Senapati Bapat Marg, Prabhadevi (West), Mumbai - 400013. MPPL is an unlisted company. MPPL is one of India's largest specialized packaging manufacturer and currently manufactures premium labels, canisters and cartons in such shape, size or form as per its clients' specifications. MPPL is a wholly owned subsidiary of PPL.
2. PPL was incorporated the 26th day of April, 1996 as a Private Limited Company, bearing Corporate Identity Number (CIN): U21029DD1996PLC003450, currently having its registered office at Survey No. 11 & 13, Ringanwada, Nani Daman, Daman 396210. PPL was converted to a public unlisted company, and a fresh certificate of incorporation consequent to its conversion to a public limited company and change of name was issued to PPL by the jurisdictional Registrar of Companies, on 21st day of September, 2000 in the name of 'Parksons Packaging Limited'. PPL is engaged in the manufacturing of printed folding cartons, catering to the domestic and international market.

RATIONALE OF THE SCHEME

3. PPL and MPPL are engaged in a similar line of business. PPL, with the objective of expanding its business operations, acquired the entire business and operations of MPPL on November 26, 2021, through purchase of 100% of the equity shares of

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

NOTARY HEMANT IAMGAM MUMBAI MAHARASHTRA Regn. No. 4762 Expiry Date 28-11-2022 GOVERNMENT OF INDIA

PARKSONS PACKAGING LIMITED

MPPL. Pursuant to this Scheme, PPL intends to consolidate the operations of MPPL, its wholly owned subsidiary, with itself by way of merger. This is in line with PPL's strategy of business expansion and inorganic growth.

4. The management of MPPL and PPL believe amalgamation of MPPL with PPL, *inter alia*, would have the following benefits:

   i. consolidation of business activities into one single entity will lead to elimination of duplication in administrative costs and multiple record-keeping and increase operational and management efficiency and synergy resulting in cost savings and enable PPL to participate more profitably in an increasingly competitive market;

   ii. more focus and concentrated efforts by management to grow the business with faster and effective decision making by eliminating unnecessary multiple and burdensome communication and coordination effort across different entities;

   iii. the merger will provide an opportunity to leverage combined assets, capabilities, experience, and infrastructure of both entities and build a stronger sustainable business and enable optimal utilization of existing resources;

   iv. integrate business functions and enable the management to pool human resources with diverse skills, talent, and experience of both the companies for common advantage and for further growth and diversification in the business;

   v. simplification of corporate structure and reduction of legal and regulatory compliances relating to MPPL;

   vi. create enhanced value for all stakeholders of the respective companies; and

   vii. consolidation of business will result in expansion of operations and cost reduction and would enable PPL to self-finance for the above-referred benefits it is likely to receive as part of the merger of MPPL with PPL.

PARTS OF THE SCHEME

The Scheme is divided into the following parts:

Part A - Deals with Definitions and Interpretations;

Part B – Deals with details of share capital of MPPL and PPL;

Part C - Deals with the amalgamation of MPPL with PPL;

177

PART A – DEFINITIONS AND INTERPRETATIONS

1 DEFINITIONS

In this Scheme, unless inconsistent with the subject or context, the following expressions shall have the following meaning:

1.1 "Act" or "the Act" means the Companies Act, 2013, the rules and regulations made thereunder, and any alterations, modifications, amendments made thereto and/or any re-enactment thereof, as applicable and for the time being in force;

1.2 "Applicable Law(s)" means: (a) all applicable statutes, enactments, acts of legislature or parliament, laws, ordinances, rules, bye-laws, regulations, circulars, listing agreements, notifications, guidelines or policies of any applicable country and/or jurisdiction, (b) administrative interpretation, writ, injunction, directions, directives, judgment, arbitral award, decree, orders or governmental approvals of, or agreements with, any governmental authority or recognized stock exchange, and (c) international treaties, conventions and protocols, as may be in force from time to time;

1.3 "Appointed Date" means the April 1, 2022 or such other date as may be agreed by the Board of MPPL and PPL or as the Hon'ble National Company Law Tribunal, may decide/approve;

1.4 "Board of Directors" or "Board" in relation to MPPL and PPL, as the case may be, means the Board of Directors of such company, and shall include a committee duly constituted and authorized by each of the companies and/or their respective Boards, for the purposes of various matters pertaining to the Scheme and/or any other related, connected, or incidental matters;

1.5 "Effective Date" means the last of the dates on which the certified copy of the Order sanctioning this Scheme as passed by the National Company Law Tribunal, is filed by MPPL and PPL with the respective jurisdictional registrar of companies. Any references in the Scheme to "upon the Scheme becoming effective" or "effectiveness of the Scheme" or "upon coming into effect of this Scheme" shall mean the "Effective Date";

1.6 "Encumbrance" means any: (a) charge, lien (statutory or other), or mortgage, any easement, right of way, right of first refusal or other encumbrance or security interest securing any obligation of any person; (b) pre-emption right, option, right to acquire,

right to set off or other third party right or claim of any kind, including any restriction on use, voting, Transfer, receipt of income or exercise; or (c) any equity, assignments hypothecation, title retention, restriction, power of sale or other type of preferential arrangements; or (iv) any agreement to create any of the above, and the term "Encumbered" shall be construed accordingly;

1.7 **"Governmental Authority"** means any applicable central, state or local government or semi-government, legislative body, executive, regulatory or administrative authority, local authority, agency or commission or any court, tribunal, board, department, commission, entity, agency, bureau, instrumentality, official, judicial or arbitral body, statutory body or stock exchange, or any other organization to the extent that the rules, regulations and standards, requirements, procedures or orders of such authority, body or other organization have the force of law;

1.8 **"Income Tax Act"** means the Income Tax Act, 1961, including the rules made thereunder, and any amendments, alterations, modifications made thereto or any re-enactments thereof for the time being in force;

1.9 **"MPPL" or "Transferor Company"** means Manohar Packagings Private Limited (CIN: U74950MH1994PTC260138), a company incorporated under the Companies Act, 1956 and having its registered office at 701 & 702, 7th Floor, One International Centre, Tower 1, Senapati Bapat Marg, Prabhadevi West, Mumbai 400013;

1.10 **"NCLT" or "Hon'ble National Company Law Tribunal"** or **"Tribunal"** means the bench of the National Company Law Tribunal having jurisdiction over the registered offices of Transferor Company and Transferee Company and shall include, if applicable, such other forum or authority as may be vested with the powers of the NCLT under the Act;

1.11 **"PPL" or "Transferee Company"** means Parksons Packaging Limited (CIN: U21029DD1996PLC003450), a company incorporated under the Companies Act, 1956 and having its registered office at Survey No. 11 & 13, Ringanwada, Nani Daman, Daman 396210.

1.12 **"Scheme"** or **"the Scheme"** or **"this Scheme"** means this Scheme of Amalgamation between Manohar Packagings Private Limited and Parksons Packaging Limited and their respective shareholders, in its present form as submitted to the NCLT for sanction including / with any modifications / amendments thereto / therein made under Clause 17 of the Scheme;

NOTARY HEMANT JANGAM MUMBAI MAHARASHTRA Regn. No. 4762 Expiry Date 20-10-2022 GOVERNMENT OF INDIA

1.13 **"Taxation" or "Tax" or "Taxes"** means all forms of taxes (whether direct or indirect) and statutory, governmental, state, provincial, local governmental or municipal impositions, duties, contributions and levies and whether levied by reference to income, profits, book profits, gains, asset values, turnover, added value or otherwise and shall further include payments in respect of or on account of Tax, whether by way of deduction at source, advance tax, minimum alternate tax or otherwise or attributable directly or primarily to MPPL and PPL and all penalties, charges, costs and interest relating thereto.

2 INTERPRETATIONS

2.1 All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act, Income Tax Act, Indian Accounting Standards, other Applicable Laws, rules, regulations, bye-laws, as the case may be or any statutory modification or re-enactment thereof from time to time.

2.2 In this Scheme, unless the context otherwise requires:

2.2.1 Words denoting singular shall include plural and vice versa;

2.2.2 headings and bold typeface are only for convenience and shall be ignored for the purposes of interpretation;

2.2.3 references to the word "include" or "including" shall be construed without limitation;

2.2.4 a reference to an article, clause, section, paragraph, or schedule is, unless indicated to the contrary, a reference to an article, clause, section, paragraph, or schedule of this Scheme;

2.2.5 reference to a document includes an amendment or supplement to, or replacement or novation of, that document; and

2.2.6 references to a person include any individual, firm, body corporate (whether incorporated or not), Government, state or agency of a state or any joint venture, association, partnership, works councilor employee representatives body (whether having separate legal personality or not).

2.2.7 references to any of the terms, taxes, duty, levy, cess in the Scheme shall be construed as reference to all of them whether jointly or severally.

2.2.8 word(s) and expression(s) elsewhere defined in the Scheme will have the meaning(s) respectively ascribed to them.

2.2.9 references to dates shall be construed to be references to Indian dates;

2.2.10 any reference to any statute or statutory provision shall include:

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

NOTARY HEMANT IANGAM MUMBAI MAHARASHTRA Regn. No. 4762 Expiry Date 20-10-2022 GOVERNMENT OF INDIA

PARKSONS PACKAGING LIMITED

i. all subordinate legislations made from time to time under that provision (whether amended, modified, re-enacted, or consolidated from time to time or not) and any retrospective amendment; and

ii. such provision as from time to time amended, modified, re-enacted or consolidated (whether before or after the filing of this Scheme) to the extent such amendment, modification, re-enactment or consolidation applies or is capable of applying to the matters contemplated under this Scheme and (to the extent liability there under may exist or can arise) shall include any past statutory provision (as amended, modified, re-enacted or consolidated from time to time) which the provision referred to has directly or indirectly replaced.

3 DATE OF TAKING EFFECT AND OPERATIVE DATE

The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the Hon'ble NCLT or made as per Clause 17 of the Scheme, shall be effective from the Appointed Date but shall be operative from the Effective Date.

Part B – SHARE CAPITAL

4 SHARE CAPITAL

4.1 The authorized, issued, subscribed and paid-up share capital of MPPL as on March 31, 2022, is as under:

Share Capital	Amount (in INR)
Authorised Capital	
3,00,000 Equity shares of Rs. 10 each	30,00,000
TOTAL	**30,00,000**
Issued, Subscribed and Paid-up Share Capital	
2,40,000 Equity shares of Rs. 10 each, fully paid up	24,00,000
TOTAL	**24,00,000**

As on the date of approval of the Scheme by the Board of MPPL, 100% of the equity share capital of MPPL is held by PPL and its nominees. Accordingly, MPPL is a wholly owned subsidiary of PPL.

4.2 The authorized, issued, subscribed and paid-up share capital of PPL as on March 31, 2022, is as under:

Share Capital	Amount (in INR)
Authorised Capital	
2,00,00,000 Equity shares of Rs. 10/- each	20,00,00,000
TOTAL	20,00,00,000
Issued, Subscribed and Paid-up Equity Share Capital	
1,32,39,952 Equity shares of Rs. 10/- each	13,23,99,520
TOTAL	13,23,99,520

PART C – AMALGAMATION OF MPPL WITH PPL

5 TRANSFER AND VESTING

5.1 With effect from the opening of business hours as on the Appointed Date and upon the Scheme becoming effective, the entire business and whole of the undertaking of MPPL, together with all its properties, assets, investments, liabilities, rights, benefits, interests and obligations therein, shall, pursuant to the provisions of Sections 230-232 and all other applicable provisions of the Act, and without any further act, instrument, deed, matter or thing, stand transferred to and vested in or deemed to be transferred to and vested in PPL, as a going concern, so as to become, as from the Appointed Date, the assets and liabilities of PPL, in the following manner:

5.1.1 All assets of MPPL as are movable in nature or incorporeal property or are otherwise capable of being transferred and vested by manual delivery or by endorsement and delivery shall stand transferred and vested from MPPL in favour of PPL and shall become the assets of PPL. The vesting pursuant to this clause shall be deemed to have occurred by manual/constructive delivery and/or by delivery of possession and/or by endorsement and delivery, as appropriate in relation to the property/asset, towards the end and intent that the title of the asset is transferred and vested with PPL on such delivery without requiring any deed or instrument of conveyance for the same. Any investment of MPPL held in dematerialized form will be transferred to PPL by issuing appropriate delivery instructions to the depository participant with whom MPPL has an account. Such delivery and transfer shall be made on a date mutually agreed upon between the respective Boards of MPPL and PPL, being a date after the sanction of the Scheme by the NCLT.

5.1.2 The moveable assets of MPPL, other than those specified in the clause above, including actionable claims, sundry debtors, outstanding loans and advances, if any, recoverable in cash or in kind or for value to be received, bank balances and deposits including deposits paid in relation to outstanding litigations, if

NOTARY HEMANT JANGAM Mumbai MAHARASHTRA Regn No 1702 Expiry Date 28-10-2022 GOVERNMENT OF INDIA

PARKSONS PACKAGING LIMITED

any, with Governmental Authority or other authorities and bodies, customers and other persons, shall, without any further act, instrument or deed, be transferred to and vested in as the property of PPL. PPL may, if required, give notice in such form as it may deem fit and proper to each person or debtor that, pursuant to the Scheme, the said person or debtor should pay the debt, loan or advance or make good the same or hold the same to its account and that the right of PPL to recover or realise the same is in substitution of the right of MPPL and that appropriate entry should be passed in its respective books to record the aforesaid charges. Any document of title pertaining to the assets of MPPL shall also be deemed to have been mutated and recorded as title of PPL to the same extent and manner as originally held by MPPL to the end and intent that all the ownership, right, title and interest so vesting in PPL will be such as if PPL was originally MPPL. PPL shall, be entitled to the delivery and possession of all documents of title including all related documents of all such movable assets of MPPL.

5.1.3 Without prejudice to any of the Clauses above, with effect from the Appointed Date and upon the Scheme becoming effective, all immoveable properties, including but not limited to land and building in Punjab, flats in Goa, leasehold land in Goa taken on lease from Goa Industrial Development Corporation together with all structures and rights thereon, whether freehold or leasehold, relating to MPPL and any documents of title, rights, interests, claims, including leases, licenses, easements in relation thereto and any incentives availed by MPPL (especially incentives currently available to MPPL provided by the State of Punjab), shall, pursuant to the applicable provisions of the Act and the Scheme, without any further act, instrument, deed, matter or thing, stand transferred to and vested into PPL, as of the Appointed Date. The mutation of the title to the immoveable properties shall be made and duly recorded by the appropriate authorities pursuant to the sanction of the Scheme and upon the Scheme becoming effective, in accordance with the terms hereof, in favour of PPL without requirement of execution of any further documents for registering the name of PPL as owner thereof and the regulatory authorities, including Sub-registrar of Assurances, Talati, Tehsildar, etc. may rely on the Scheme along with the copy of the Order passed by the NCLT, to make necessary mutation entries and changes in the land or revenue records to reflect the name of PPL as owner of the immovable properties.

5.1.4 All intellectual property rights including registrations, licenses, trademarks, logos, service marks, copyrights, domain names, trade names, and applications relating thereto, goodwill, know how, trade secrets, various business and commercial rights or any other property of like nature, of MPPL,

NOTARY HEMANT JANGAM MUMBAI MAHARASHTRA Regn No 4762 Expiry Date 20-10-2022 GOVERNMENT OF INDIA

PARKSONS PACKAGING LIMITED

if any, whether recorded in the books of accounts of MPPL or not, shall stand vested in PPL without any further act, instrument or deed. Any document of title pertaining to the intangible assets of MPPL shall also be deemed to have been mutated and recorded as title of PPL to the same extent and manner as originally held by MPPL to the end and intent that all the ownership, right, title and interest so vesting in PPL will be such as if PPL was originally MPPL. PPL shall, be entitled to the delivery and possession of all documents of title including all related documents of all such assets of MPPL.

5.1.5 Without prejudice to the generality of the forgoing, it is clarified that upon the coming into effect of this Scheme, all permits, authorizations, licenses, consents, registrations, approvals, municipal permissions, industrial licenses, registrations, privileges, easements and advantages, facilities, rights, powers and interest (whether vested, contingent or impending), of every kind and description of whatsoever nature in relation to MPPL, to which MPPL is a party to or to the benefit of which MPPL may be eligible and which are subsisting or having effect immediately before the Appointed Date shall subject to Applicable Law, stand transferred to and vested in or shall be deemed to be transferred to and vested in PPL as if the same were originally given or issued to or executed in favour of PPL, and the rights and benefits under the same shall be available to PPL. Further, MPPL and / or PPL shall execute such further deeds or documents as may be required to give effect to this Clause.

5.1.6 All cheques and other negotiable instruments, payment order, electronic fund transfers (like NEFT, RTGS, etc.) received or presented for encashment which are in the name of MPPL after the Effective Date shall be accepted by the banker(s) of PPL and credited to the account of PPL, if presented by PPL or received through electronic transfers. Similarly, the banker(s) of PPL shall honour all cheques/electronic fund transfer instructions issued by MPPL for payment after the Effective Date.

5.1.7 With effect from the Appointed Date and upon the Scheme becoming effective, all debts, liabilities, contingent liabilities, duties and obligations, secured or unsecured, of every kind, nature and description, whether or not provided in the books, of MPPL, shall, under the provisions of Sections 230-232 of the Act, and without any further act or deed, be transferred to or be deemed to be transferred to PPL so as to become, from the Appointed Date, the debts, liabilities, contingent liabilities, duties and obligations of PPL and it shall not be necessary to obtain the consent of any third party or other person, who is a party to any contract or arrangement by virtue of which such

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD BENCH

NOTARY HEMANT JANGAM MUMBAI MAHARASHTRA Regn No. 1762 Expiry Date 30-11-2022 GOVERNMENT OF INDIA

PARKSONS PACKAGING LIMITED

debts, liabilities, contingent liabilities, duties and obligations have arisen, in order to give effect to the provisions of this Clause.

5.1.8 All *inter-se* liabilities, between MPPL and PPL, if any, due or outstanding or which may at any time immediately prior to the Effective Date become due or remain outstanding, shall stand cancelled and be deemed to have been discharged by such cancellation and consequently, there shall remain no inter-se liability between them as of Effective Date and corresponding effect shall be given in the books of account and records of PPL.

5.1.9 All the existing securities, mortgages, charges, encumbrances or liens, if any, as on the Appointed Date and those created by MPPL after the Appointed Date, over the assets of MPPL transferred to PPL shall, after the Effective Date, continue to relate and attach to such assets or any part thereof to which they are related or attached prior to the Effective Date. Such securities, mortgages, charges, encumbrances or liens shall not relate or attach or extend to any of the other assets of PPL.

Similarly, PPL shall not be required to create any additional security over assets vested under this Scheme for any loans, debentures, deposits or other financial assistance already availed of or to be availed of by it, and the encumbrances in respect of such indebtedness of PPL shall not extend or be deemed to extend or apply to the assets so vested.

5.1.10 Subject to applicable laws, any undertaking of MPPL, which is binding on MPPL as on the Appointed Date of this Scheme, to give a guarantee to any person in respect of any obligation of MPPL shall continue in full force and effect against PPL.

5.1.11 Where any of the liabilities and obligations attributed to MPPL on the Appointed Date have been discharged by MPPL on after the Appointed Date and prior to the Effective Date, such discharge shall be deemed to have been for and on behalf of PPL.

5.1.12 Upon the Scheme becoming effective, all taxes payable by, or refundable to, MPPL, including any refunds, claims or credits (including credits for income tax, withholding tax, advance tax, self-assessment tax, minimum alternate tax, CENVAT credit, goods and services tax credits, other indirect tax credits and other tax receivables) shall be treated as the tax liability, refunds, claims, or credits, as the case maybe, of PPL. PPL shall be entitled to initiate, raise, add or modify any claims in relation to such taxes on behalf of MPPL.

5.1.13 Taxes, if any, paid or payable by MPPL after the Appointed Date shall be treated as paid or payable by PPL and PPL shall be entitled to claim the credit,

refund or adjustment for the same as may be applicable. If MPPL is entitled to any unutilized credits (including balances or advances), benefits, subsidies, grants, special status and other benefits or privileges of whatsoever nature under the incentive schemes and policies including tax holiday or concessions under any Tax Laws or Applicable Laws, the same shall, to the extent statutorily available and along with associated obligations, stand transferred to and be available to PPL as if PPL was originally entitled to all such benefits, entitlements, incentives and concessions and PPL shall be entitled as an integral part of the Scheme to claim such benefit or incentives or unutilised credits as the case may be automatically without any specific approval or permission.

5.1.14 Upon the Scheme becoming effective, PPL shall have the right to revise its financial statements and returns along with prescribed forms, filings and annexures under the Tax Laws and to claim refunds and/or credit for Taxes paid and for matters incidental thereto, if required, to give effect to the provisions of the Scheme.

5.1.15 It is hereby clarified that in case of any refunds, benefits, incentives, grants, subsidies, etc., MPPL, shall, if so required by PPL, issue notices in such form as PPL may deem fit and proper stating that pursuant to the NCLT having sanctioned this Scheme under Sections 230 to 232 of the Act, the relevant refund, benefit, incentive, grant, subsidies, be paid or made good or held on account of PPL, as the person entitled thereto, to the end and intent that the right of MPPL, to recover or realise the same, stands transferred to PPL and that appropriate entries should be passed in their respective books to record the aforesaid changes;

5.2 This Scheme has been drawn up complying with the conditions relating to "Amalgamation" as specified under Section 2(1B) of the Income-tax Act, 1961. Further, if any terms or provisions of the Scheme are found or interpreted to be inconsistent with the said provisions at a later date including resulting from an amendment of law or for any other reason whatsoever, the provisions of the said section of the Income-tax Act, 1961 shall prevail and the Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) of the Income-tax Act, 1961. Such modification will however not affect other parts of the Scheme.

6 CONSIDERATION

6.1 The entire issued, subscribed, and paid-up equity share capital of MPPL is held by PPL and its nominees.

6.2 Upon the Scheme becoming effective, no shares of PPL shall be issued or allotted in lieu or exchange of its holding in MPPL and, investment in the share capital of MPPL held by PPL as on the Effective Date shall stand automatically cancelled accordingly, without any further application, act, instrument or deed.

6.3 The cancellation of the equity share capital held by PPL in MPPL, in accordance with Clause 6.1 of this Scheme, shall be effected as a part of this Scheme itself and not under a separate procedure, in terms of Section 66 of the Companies Act and the order of the NCLT sanctioning this Scheme shall be deemed to be an order under Section 66 of the Companies Act, or any other applicable provisions, confirming the reduction.

7 ACCOUNTING TREATMENT IN THE BOOKS OF PPL

7.1 Upon the Scheme coming into effect, PPL shall account for the amalgamation in its books of accounts in accordance with "Pooling of Interest Method" of accounting as laid down in Appendix C of Ind AS-103 (Business Combinations of entities under common control) notified under Section 133 of the Companies Act, 2013, under the Companies (Indian Accounting Standards) Rules, 2015, as may be amended from time to time, in its books of accounts such that:

7.1.1 PPL shall record the assets and liabilities, if any, of MPPL vested in it pursuant to this Scheme, at their carrying values as appearing in the consolidated financial statements of PPL;

7.1.2 The value of all investments held by PPL in MPPL shall stand cancelled pursuant to the amalgamation;

7.1.3 All intercompany balances including investments, loans, advances, amount receivable or payable inter-se between PPL and MPPL, if any, appearing in the books of PPL shall stand cancelled;

7.1.4 The difference, if any arising after taking the effect of clause 7.1.1 to 7.1.3 shall be transferred to "Capital Reserve Account" in the financial statements of PPL;

7.1.5 In case of any differences in accounting policies between MPPL and PPL, the accounting policies followed by PPL shall prevail to ensure that the financial statements reflect the financial position based on consistent accounting policies; and

7.1.6 From the beginning of the comparative period, financial information in the financial statements of PPL shall be restated for the accounting impact of merger, as stated above, from the date of business combination since common control existed prior to the Appointed Date.

8 AGGREGATION OF AUTHORISED CAPITAL

8.1 Upon the Scheme becoming effective and with effect from the Appointed Date, the authorized share capital of PPL shall automatically stand increased, without any further act, instrument, or deed on part of PPL including payment of stamp duty and fees payable to Registrar of Companies, by the authorized share capital of MPPL as on the Effective Date.

8.2 The Memorandum of Association of PPL (relating to the authorized share capital) shall, without any further act, instrument, or deed, be and stand altered, modified, and amended and no future resolutions under section 13, 61 and any other applicable provisions of the Act would be required to be separately passed. The stamp duties and fees paid on the authorised capital of MPPL shall be utilized and applied to the increased authorised share capital of PPL and shall be deemed to have been so paid by PPL for increase in the authorised share capital on such combined authorised share capital and accordingly no extra stamp duty and/or fee shall be payable by PPL for increase in the authorised share capital to that extent. The Memorandum of Association and Articles of Association of PPL shall be amended as may be required to give effect to this clause.

8.3 It is clarified that the approval of the members of PPL to the Scheme shall be deemed to be their consent / approval also to the alteration of the Memorandum and Articles of Association as may be required under the Act.

8.4 Accordingly, in terms of this Scheme, the authorized share capital of PPL shall stand enhanced to an amount of Rs. 20,30,00,000 (Twenty Crore and Thirty Lakh only) and Clause 5 of the Memorandum of Association of PPL shall on the Effective Date, stand substituted to read as follows:

"5 The Authorized Share Capital of the Company is INR 20,30,00,000 (Indian Rupees Twenty Crore and Thirty Lakh only) divided into 2,03,00,000 (Two Crore and Three Lakh) Equity Shares of face value INR 10 /- (Rupees Ten) each with the power to the Company to increase or reduce or modify the share capital of the Company and/or divide all or any of the shares in the capital for the time being into several classes and classify and reclassify such shares from the shares of one class into shares of other

NOTARY HEMANT JAIGAM MUMBAI MAHARASHTRA Regn No. 4752 Expiry Date 29-10-2022 GOVERNMENT OF INDIA

PARKSONS PACKAGING LIMITED

class or classes and attach thereto respectively such preferential, deferred, qualified or other special rights, privileges, conditions, or restrictions as may be determined by or in accordance with the Articles of Association of the Company for the time being and to vary, modify or abrogate any such rights, privileges, conditions or restrictions in such manner as may be permitted by the legislative provisions or by the Articles of Association of the Company for the time being in force."

9 CONDUCT OF BUSINESS TILL EFFECTIVE DATE

9.1 The Boards of PPL and MPPL shall have the absolute right to acquire any asset for, or sell, transfer, create, encumbrance or otherwise deal with any asset or raise any debt required for the business and generally carry on the business of PPL and MPPL, respectively, in their sole discretion, up to Effective Date.

10 EMPLOYEES

10.1 MPPL shall not vary the terms and conditions of employment of any of the employees except in the ordinary course of business or without the prior consent of PPL or pursuant to any pre-existing obligation undertaken by MPPL as the case may be, prior to the Effective Date.

10.2 Upon the Scheme becoming effective, all staff, workmen and employees of MPPL, if any, who are in service as on the Effective Date shall become staff, workmen and employees of PPL by operation of law, without any break in their service and on the basis of continuity of service, and the terms and conditions of their employment with PPL shall not be less favorable than those applicable to them with reference to their employment with MPPL. PPL agrees that the services of all such employees with MPPL, up to the Effective Date shall be taken into account for purposes of all retirement benefits to which they may be eligible as on the Effective Date.

10.3 It is expressly provided that, on the Scheme becoming effective, the provident fund, gratuity fund, superannuation fund or such other special fund, if any, or trusts (hereinafter collectively referred as 'Funds') created for the benefit of the staff, workmen and employees of MPPL shall, with the approval of the concerned authorities, become Funds of PPL, or shall be transferred to or merged with other similar funds of PPL for all purposes whatsoever in relation to the administration or operation of such Funds or in relation to the obligation to make contributions to the said Funds in accordance with the provisions thereof as per the terms provided in the respective trust deeds or other agreements, if any, to the end and intent that all rights, duties, powers and obligations of MPPL in relation to such Funds shall become those of PPL. It is clarified

NOTARY HEMANT JANGAM MUMBAI MAHARASHTRA Regn No 4762 Expiry Date 29-10-2022 GOVERNMENT OF INDIA

PARKSONS PACKAGING LIMITED

that the services of the staff, workmen and employees will be treated as having been continuous for the purpose of the said Funds.

10.4 Services of all employees of MPPL, shall be taken into account by PPL for the purposes of all benefits to which such staff, workmen, and employees may be eligible, including in relation to the level of remuneration and contractual and statutory benefits, incentive plans, terminal benefits, gratuity plans, provident plans, and other retirement benefits and accordingly, such benefits shall be reckoned from the date of their respective appointment in MPPL. PPL undertakes to pay the same, as and when payable under Applicable Laws.

10.5 MPPL will transfer/handover to PPL, copies of employment information of all such transferred employees of MPPL, including but not limited to, personnel files (including hiring documents, existing employment contracts, and documents reflecting changes in an employee's position, compensation, or benefits), payroll records, medical documents (including documents relating to past or ongoing leaves of absence, on the job injuries or illness, or fitness for work examinations), disciplinary records, supervisory files and all forms, notifications, orders and contribution/identity cards issued by the concerned authorities relating to benefits transferred pursuant to this sub-clause.

10.6 PPL shall continue to abide by any agreement(s)/ settlement(s) entered into by MPPL with its employees, which are subsisting or having effect immediately prior to Appointed Date and continuing from Appointed Date till the Effective Date.

11 LEGAL PROCEEDINGS

11.1 Upon the Scheme becoming effective, all suits, appeals, action, legal, administrative or other proceedings of whatsoever nature, by or against MPPL in any court or before any authority, judicial, quasi-judicial or administrative, any adjudicating authority pending on the Effective Date, shall not abate or be discontinued or in any way be prejudicially affected by reason of amalgamation or by anything contained in this Scheme, but the same shall be continued and enforced by or against PPL in the manner and to the same extent as would have been continued, prosecuted and enforced by or against MPPL as if this Scheme had not been made.

11.2 PPL undertakes to have all legal or other proceedings initiated by or against MPPL referred to in clause 11.1 above, transferred into its name and to have the same continued, prosecuted and enforced by or against PPL to the extent legally permissible after the Scheme being effective. To the extent such proceedings cannot be taken over

NOTARY HEMANT JANGAM MUMBAI MAHARASHTRA Regn No 4762 Expiry Date 29-10-2022 GOVERNMENT OF INDIA

PARKSONS PACKAGING LIMITED

by PPL, the same shall be pursued by or against MPPL for and on behalf of PPL as per the instructions of and entirely at the cost and expenses of PPL.

12 BORROWING LIMITS AND CORPORATE APPROVALS

12.1 With effect from the Appointed Date, the borrowing and investment limits of PPL under the Act shall be deemed without any further act or deed to have been enhanced by the borrowing and investment limits, if any, of MPPL, such limits being incremental to the existing limits of PPL.

12.2 Any corporate approvals obtained by MPPL, whether for the purposes of compliance or otherwise, shall stand transferred to PPL and such corporate approvals and compliance shall be deemed to have been obtained and complied with by PPL.

13 CONTRACTS, DEEDS, ETC.

13.1 Subject to the other provisions of this Scheme, all contracts, deeds, bonds, insurance, letters of intent, undertakings, arrangements, policies, agreements and other instruments, if any, of whatsoever nature pertaining to MPPL to which MPPL is a party and subsisting or having effect on the Effective Date, shall be in full force and effect against or in favour of PPL, as the case may be, and may be enforced by or against PPL as fully and effectually as if, instead of MPPL, PPL had been a party or beneficiary thereto.

13.2 PPL shall, any time of the Effective Date, as the successor entity of MPPL, if so required under any Applicable Law or otherwise, enter into and/or issue and/or execute deeds, writings or confirmations or enter into any arrangements, confirmations or novations with any party to any contract or arrangement, including any filings with the regulatory authorities, in order to give formal effect to the provisions of this Scheme. PPL shall be deemed to be authorised to execute any such deeds, writings or confirmations on behalf of MPPL and to implement or carry out all formalities required on the part of MPPL to give effect to the provisions of this Scheme, *inter alia* in its capacity as the successor-in-interest of MPPL.

13.3 Upon the Scheme coming into effect on the Effective Date, with effect from the Appointed Date, PPL shall be entitled to the benefit of the past experience and / or performance of MPPL for all purposes without any further act, instrument or deed required by PPL and without any approval or acknowledgement being required from any third party.

NOTARY GOVERNMENT OF INDIA Expiry Date 28-10-2022

PARAKH SHOSHI PACKAGING LIMITED

13.4 With effect from the Effective Date, all *inter-se* contracts solely between PPL and MPPL shall stand cancelled and cease to operate, and appropriate effect shall be given to such cancellation and cessation in records of PPL.

14 SAVING OF CONCLUDED TRANSACTIONS

The transfer of properties and liabilities under Clause 5 above and the continuance of proceedings by or against MPPL under Clause 11 above shall not affect any transaction or proceedings already concluded by MPPL on and after the Appointed Date till the Effective Date, to the end and intent that PPL accepts and adopts all acts, deeds and things done and executed by MPPL in respect thereto as done and executed on behalf of PPL.

15 DISSOLUTION OF MPPL

15.1 On the Scheme becoming effective, with effect from the Effective Date, MPPL shall without any further act, instrument, or deed, stand dissolved automatically without being wound-up in accordance with the provisions of Section 230 and 232 of the Act.

15.2 On and from the Effective Date, the name of MPPL shall be struck off from the records of the Registrar of Companies, Mumbai, Maharashtra.

PART D – GENERAL CLAUSES, TERMS AND CONDITIONS

16 APPLICATION TO THE NCLT

16.1 MPPL and PPL, if required, shall with all reasonable dispatch make all necessary applications under Section 230-232 and other appliable provisions of the Act, to the NCLT for seeking approval of the Scheme under the provisions of the law.

16.2 PPL shall be entitled, pending the sanction of the Scheme, to apply to relevant Governmental Authority, if required, under Applicable Law(s) for such consents and approvals which PPL may require to carry on the business of MPPL without any interruption.

17 MODIFICATION OR AMENDMENTS TO THE SCHEME

MPPL and PPL (through their respective Boards or the committees as may be empowered by the Board), in their full and absolute discretion, jointly and as mutually agreed in writing may:

17.1 Assent to and/or consent to any alteration(s) or modification(s) or amendment(s) or addition(s) / deletion(s) to this Scheme or to any conditions or limitations which the NCLT and/or any other Governmental Authority may deem fit to direct or impose, or which

may otherwise be considered necessary, desirable or appropriate as a result of subsequent events or otherwise by them (i.e. the Board) and to do all acts, deeds and things as may be necessary, desirable or expedient for the purposes of this Scheme;

17.2 Take all such steps as may be necessary, desirable, or proper to resolve any doubts, difficulties, or questions of law or otherwise, whether by reason of any directive or orders of any other authorities or otherwise howsoever arising out of or under or by virtue of the Scheme and/or any matter concerned or connected therewith;

17.3 Modify or vary the Scheme or any part thereof, prior to the Effective Date, in any manner and at any time, subject to such modification being compliant with applicable laws;

17.4 It is clarified that the approval of the shareholders and/or creditors of MPPL and PPL, as may be applicable, to the Scheme shall include any subsequent modifications to the Scheme which may be undertaken by the Boards of MPPL and PPL under this clause.

18 WITHDRAWAL

MPPL and PPL, acting through their respective Board of Directors shall each be at liberty to withdraw from this Scheme in case any condition or alteration imposed by any authority / person or otherwise is unacceptable to any of them, in which case the Board of the other company shall decide consequent actions as considered appropriate by them.

19 CONDITIONALITY OF THE SCHEME

This Scheme is and shall be conditional upon and subject to:

19.1 The Scheme being approved by the requisite majorities in number and value of such classes of persons including the respective members and/or creditors of MPPL and PPL as required under Section 230-232 of the Act.

19.2 The requisite consent, approval or permission of the Central Government or any other statutory or regulatory authority which by law may be necessary for the implementation of this Scheme.

19.3 The Scheme being sanctioned by the NCLT or any other authority under Sections 230 to 232 of the Act.

NOTARY HEMANT JANGAM MUMBAI MAHARASHTRA Regd No 4762 Expiry Date 23-10-2022 GOVERNMENT OF INDIA

PARAKH FOILS PACKAGING LIMITED

19.4 The certified copy of the Order of the Hon'ble NCLT sanctioning the Scheme, are filed with the registrar of companies having jurisdiction over MPPL and PPL respectively.

19.5 All other sanctions and approvals as may be required by law in respect of this Scheme being obtained

20 EFFECT OF NON-RECEIPT OF APPROVALS

In the event of any of the said sanctions and approvals referred to in the preceding Clause not being obtained and/ or the Scheme not being sanctioned by the NCLT and / or the Order not being passed as aforesaid before March 31, 2024 or within such further period or periods as may be agreed upon between MPPL and PPL by their Boards of Directors (and which the Boards of Directors of the Companies are hereby empowered and authorised to agree to and extend the Scheme from time to time without any limitation) this Scheme shall stand revoked, cancelled and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any rights and/ or liabilities which might have arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law.

21 COSTS, CHARGES & EXPENSES

21.1 Save and except as provided elsewhere in the Scheme, all costs, charges, taxes including duties, levies, and all other expenses, if any, incurred in carrying out and implementing the terms and provisions of this Scheme and matters incidental thereto, shall be borne and paid by PPL.

****

PARKSONS PACKAGING LIMITED

NOTARY
HEMANT JANGAM
MUMBAI
MAHARASHTRA
Regn No 4762
Expiry Date
20-10-2022
GOVERNMENT OF INDIA

CIN: U74950MH1994PTC260138
MUMBAI HO : GST 27AACCM4748G1ZD
GOA : GST 30AACCM4748G1ZQ
PUNJAB : GST 03AACCM4748G2ZM

ANNEXURE – B

C.P. (CAA) No.66/NCLT/AHM/2022
Connected with
CA (CAA) NO.41/NCLT/AHM/2021

SCHEDULE OF ASSETS AND LIABILITIES AS ON APRIL 1, 2022, BEING THE APPOINTED DATE OF THE SCHEME OF AMALGAMATION BETWEEN MANOHAR PACKAGINGS PRIVATE LIMITED AND PARKSONS PACKAGING LIMITED AND THEIR RESPECTIVE SHAREHOLDERS

Name of the Transferor Company	Manohar Packagings Private Limited
Corporate Identification Number (CIN)	U74950MH1994PTC260138
Registered Office	701 & 702, 7th Floor, One International Centre, Tower 1, Senapati Bapat Marg, Prabhadevi West, Mumbai 400013, Maharashtra, India
Permanent Account Number (PAN)	AACCM4748G
Tax Deduction & Collection Account Number (TAN)	BLRM07247C
GST Registration Number	27AACCM4748G1ZD
Bank Account Details	KOTAK MAHINDRA BANK , A/C.NO. 8845489554
Scheme	Scheme of Amalgamation between Manohar Packagings Private Limited and Parksons Packaging Limited and their respective shareholders
Appointed Date	April 1, 2022

The following assets of the Transferor Company are to be transferred to Parksons Packaging Limited:

Sr. No	Particulars	Amount (INR in lakhs)
1.	Non-current assets (includes PPE*, CWIP, investments, loan etc.)	9,358.82
2.	Current assets (includes inventories, trade receivables, cash and bank balances etc.)	5,017.96
	Total assets	14,376.78

*includes land and building in Punjab, flats in Goa and leasehold land in Goa taken from Goa Industrial Development Corporation.

NATIONAL COMPANY LAW TRIBUNAL

MPPL
Premium Print Solutions
MANOHAR PACKAGINGS PVT. LTD.

CIN: U74950MH1994PTC260138
MUMBAI HO : GST 27AACCM4748G1ZD
GOA : GST 30AACCM4748G1ZQ
PUNJAB : GST 03AACCM4748G2ZM

The following liabilities of the Transferor Company are to be transferred to Parksons Packaging Limited:

Sr. No	Particulars	Amount (INR in lakhs)
1.	Non-current liabilities (includes borrowings, lease liabilities etc.)	3,557.07
2.	Current liabilities (includes borrowings, trade payables etc.)	5,128.58
	Total liabilities	8,685.65

For Manohar Packagings Private Limited

Venkateshwar Rao

Authorised Signatory

MANOHAR PACKAGINGS PVT. LTD. MUMBAI

Office : One International Centre, Tower 1, 701 & 702, 7th Floor, Senapati Bapat Marg, Elphinstone Road(W), Mumbai 400 013, India.
Factory : Unit 1 - D-2/6-7, Mapusa Industrial Estate, Mapusa Bardez, Goa - 403 507.
Unit 2- P-44/45, Mapusa Industrial Estate, Mapusa Bardez, Goa - 403 507.
Unit 3- Village-Sandarsi, Ghanour, Ghanour Road, Rajpura, Patiala, Punjab - 140 417.
enquiry@manoharmail.com www.manoharpackaging.com +91 22 66667200